

Court No. - 3

Case :- WRIT - C No. - 6402 of 2023

Petitioner :- Akhilesh Patel

Respondent :- State Of U.P. Thru. Collector Pratapgarh And 3 Others

Counsel for Petitioner :- Ram Singh

Counsel for Respondent :- C.S.C., Amarjeet Singh Rakhra

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

1. Heard.

2. Learned counsel for petitioner seeks a short adjournment to seek instructions.

3. List this case on **02.08.2023 as fresh.**

[Manish Kumar, J.] [Vivek Chaudhary, J.]

Order Date :- 28.7.2023

V. Sinha

Court No. - 3

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Respondent :- State Of U.P. Thru. Collector Pratapgarh And 3 Others

Counsel for Petitioner :- Ram Singh

Counsel for Respondent :- C.S.C., Amarjeet Singh Rakhra

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

1. Learned counsel for petitioner states that he is unable to complete his instructions.
2. On request of counsel for petitioner, put up this case on 09.08.2023 in additional cause list amongst top ten cases.

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[Manish Kumar, J.] [Vivek Chaudhary, J.]

Order Date :- 2.8.2023

-Amit K-

Court No. - 3

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Pratapgarh And 3 Others

Counsel for Petitioner :- Ram Singh

Counsel for Respondent :- C.S.C., Amarjeet
Singh Rakhra

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

Learned counsel for the petitioner prays to implead Sri Brijesh Patel, who is real brother of petitioner, as respondent no.5 in the array of parties.

Prayer is allowed.

Necessary correction be made in the array of parties during course of the day.

Petitioner is permitted to serve respondent no.5 by *Dasti* notice, fixing 24.08.2023.

List this case amongst top ten cases in the additional cause list on 24.08.2023.

(Manish Kumar, J.) (Vivek Chaudhary, J.)

Order Date :- 9.8.2023

Arjun/-

Court No. - 3

Case :- WRIT - C No. - 6402 of 2023

Petitioner :- Akhilesh Patel

Respondent :- State Of U.P. Thru. Collector Pratapgarh
And 3 Others

Counsel for Petitioner :- Ram Singh

Counsel for Respondent :- C.S.C., Amarjeet Singh Rakhra

Hon'ble Vivek Chaudhary, J.

Hon'ble Manish Kumar, J.

Learned counsel for the petitioner has filed affidavit of service today, which is taken on record.

Heard learned counsel for the petitioner, learned Standing Counsel for the State and Sri Amarjeet Singh Rakhra, learned counsel for the opposite party nos. 2 & 3.

Petitioner has approached this Court claiming that his father expired and electricity dues of the house are pending. He states that under the will part dated 13.11.2003, father had specifically segregated the house into two separate parts to both the brothers i.e. the petitioner and respondent no. 5 but electricity department is asking petitioner to pay the entire dues. He further submits that petitioner is only liable to pay half of the amount under Clause 4.3(g) & (h) of the Electricity Supply Code, 2005 (hereinafter referred to as 'the Code, 2005') as the house stands legally sub-divided.

This Court had also required petitioner to serve dasti notice to the respondent no. 5 which returned back with a noting that respondent no. 5 has refused to accept the same.

Learned counsel for the Corporation has no objection in case the matter is referred to respondent no. 3, who may decide the same, looking into the acceptance and segregation as per clause 4.3 through the will.

In view of the aforesaid, petitioner is permitted to make a representation under Clause 4.3(g) & (h) of the Code, 2005 before the respondent no. 3 i.e. Executive Engineer (Prescribed Authority), Pratapgarh, within a period of two weeks from today.

In case such a representation is made, the respondent no. 3 shall call upon both the brothers and verify the will including partition of the property and decide the same in accordance with law and accordingly, direct for payment of electricity dues. The entire exercise shall be completed within a period of four weeks from the date of production/receipt of certified copy of this order along with

the representation.

In case any of the brothers fails to appear after service of notice, it shall be open for the respondent no. 3 i.e. Executive Engineer (Prescribed Authority), Pratapgarh to proceed ex-parte.

Writ petition is disposed of accordingly.

Order Date :- 24.8.2023

Nitesh